MEASURE P
CITY OF ADELANTO

IMPARTIAL ANALYSIS OF MEASURE P

This Impartial Analysis of Measure P has been prepared by the City Attorney pursuant to Section 9280 of the California Elections Code.

This ballot measure establishes a local transactions and use tax in the City of Adelanto. The ballot measure amends the Adelanto Municipal Code to add Chapter 3.70 to include the tax.

It is estimated that the tax will raise approximately $3,000,000 for the City of Adelanto. All funds raised would go to the City's General Fund and could be used for any legitimate municipal purpose including, but not limited to, repairing and improving streets and infrastructure such as storm drains, sidewalks and public facilities, maintaining parks and public areas, fire protection, paramedic and emergency response services, public safety and crime prevention efforts, homelessness response activities, and other municipal services identified through the annual City budget process.

A transactions tax is generally known as a sales tax. The sales tax is imposed on all retailers within the City of Adelanto at the rate of 1% (one percent) of the gross receipts of the retailer from the sale of all tangible personal property sold within the City.

The use tax is similar to a sales tax and it applies when one purchases an item from a retailer outside of the City of Adelanto that does not collect sales tax. The use tax is at the rate of 1% (one percent) of the sales price of the property and includes delivery charges when such charges are subject to state sales or use taxes. Use taxes are charged in order to treat transactions equally and not penalize local retailers that are subject to a sales tax.

Any transaction is only charged a sales or use tax and not both taxes. The 1% (one percent) tax is only charged once to any transaction. The tax is not only on transactions involving City residents, but the tax is also charged on transactions by non-residents that occur within the City.

The tax is not charged to transactions that are exempt from such taxation under applicable law.

If approved, the tax would go into effect April 1, 2027.

The proceeds of the tax shall be subject to an annual audit by an independent certified public accountant and the results of the audit shall be reported to the City Council in a document posted on the City's website and available for public inspection.

The measure will be adopted if a majority of voters who vote on the measure vote to approve the measure.

The measure was placed on the ballot by the Adelanto City Council.

The above statement is an impartial analysis of Measure P. If you desire a copy of the measure, please call the City Clerk's office at 760-246-2300 x11123 and a copy will be mailed at no cost to you.

s/ Todd Litfin, City Attorney

ARGUMENT IN FAVOR OF MEASURE P

This Argument in Favor of Measure P was submitted pursuant to Section 9282 of the California Elections Code. It is the opinion of the author(s), and has been printed exactly as submitted.

Vote Yes on Measure P for a Safer, Cleaner, Stronger Adelanto.

In Adelanto, we are committed to protecting our quality of life by keeping streets, parks, and public facilities safe, clean, and well-maintained. Measure P is how we get there.

Fast emergency response times for 911 calls save lives. Yet right now, Adelanto has just one fire station covering 55 square miles and fewer than half the law enforcement officers needed to keep a community our size safe. When an emergency strikes, that is not just inconvenient – it's dangerous. Measure P ensures firefighters, paramedics, and law enforcement officers can respond quickly and reliably when we need them most.

Adelanto also has more than $100 million in unfunded street and infrastructure projects. With over 250 miles of streets and 130 miles of sidewalks to maintain, the longer we wait, the more expensive repairs become. Measure P lets us fix potholes, repair aging infrastructure, and stop kicking the can down the road.

Simply put, we need Measure P to protect public safety services and maintain the quality of life our residents deserve.

ARGUMENT IN FAVOR – Continued on next page

Vote Yes on P:

- Fix potholes and pave City streets
- Keep streets, parks, and public facilities safe, clean, and well maintained
- Provide responses to 911 emergencies, fire protection, and paramedic services
- Clean up piles of trash, litter, and illegal dumping along streets, vacant lots, and in public areas

A Clear System of Transparency and Accountability:
All funds must support Adelanto services only. The state or county can't touch a penny of Measure P. Independent audits and full public disclosure ensure accountability.

Essential purchases like groceries, prescription medications, and diapers are exempt.

Neighbors, Community Leaders, Local Public Safety Officers, and Small Business Owners All Agree – Vote Yes on P!

s/ Jessie Flores, 30 yr Adelanto Resident
s/ Daniel Ramos, Adelanto Mayor Pro Tem
s/ Angelo Meza, Adelanto City Councilman
s/ Amanda Uptergrove, Adelanto City Council
s/ Gabriel Reyes, City Mayor

FULL TEXT FOR MEASURE P

ORDINANCE NO. 667

AN ORDINANCE OF THE CITY COUNCIL OF THE CITY OF ADELANTO, CALIFORNIA, ADDING CHAPTER 3.70 (TRANSACTIONS AND USE TAX) TO TITLE 3 (REVENUE AND FINANCE) OF THE ADELANTO MUNICIPAL CODE TO IMPOSE A TRANSACTIONS AND USE TAX TO BE ADMINISTERED BY THE CALIFORNIA DEPARTMENT OF TAX AND FEE ADMINISTRATION

WHEREAS the City relies on its General Fund to provide municipal services including maintenance of streets, storm drains, parks and public areas; fire and paramedic services; public safety services; homelessness response; emergency response services; and other municipal services; and

WHEREAS the City currently has more than $100 million in unfunded street and infrastructure projects, including 250 miles of streets, 130 miles of sidewalks and 261 miles of pipes with infrastructure needs that continue to grow over time; and

WHEREAS in order for the City to repair streets and potholes, keep public areas and parks safe and clean, maintain fire and paramedic services, address homelessness, and maintain 911 response times, it is critically important that the City have a new, long-term source of funds for its General Fund; and

WHEREAS a transactions and use tax for general purposes would provide such a source of funds; and

WHEREAS such transactions and use taxes are commonly referred to as "local sales taxes" and are separate taxes from the basic 1% Bradley-Burns sales and use tax that is levied by every city in California.

NOW, THEREFORE, THE CITY COUNCIL OF THE CITY OF ADELANTO DOES HEREBY ORDAIN AS FOLLOWS:

SECTION 1. The recitals set forth above are hereby incorporated by this reference as if set forth in full herein.

SECTION 2. Amendment. Chapter 3.70 (Transactions and Use Tax) is added to Title 3 (Revenue and Finance) of the Municipal Code to read as follows:

3.70.010 Title and Scope.
This chapter shall be known as the City of Adelanto Transactions and Use Tax Ordinance. The City of Adelanto hereinafter shall be called "City." This ordinance shall be applicable in the incorporated territory of the City.

3.70.020 Operative Date.
"Operative Date" means the first day of the first calendar quarter commencing more than 110 days after the adoption of this chapter. For purposes of Revenue and Taxation Code section 7265, this ordinance shall be considered adopted on the date of the election in which it is approved by the qualified voters of the City.

3.70.030 Purpose.
This chapter is adopted to achieve the following, among other purposes, and directs that the provisions hereof be interpreted in order to accomplish those purposes:

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A. To impose a retail transactions and use tax in accordance with the provisions of Part 1.6 (commencing with Section 7251) of Division 2 of the Revenue and Taxation Code and Section 7285.9 of Part 1.7 of Division 2 which authorizes the City to adopt this ordinance which shall be operative if a majority of the electors voting on the measure vote to approve the imposition of the tax at an election called for that purpose.
B. To adopt a retail transactions and use tax ordinance that incorporates provisions identical to those of the Sales and Use Tax Law of the State of California insofar as those provisions are not inconsistent with the requirements and limitations contained in Part 1.6 of Division 2 of the Revenue and Taxation Code.
C. To adopt a retail transactions and use tax ordinance that imposes a tax and provides a measure therefore that can be administered and collected by the California Department of Tax and Fee Administration in a manner that adapts itself as fully as practicable to, and requires the least possible deviation from, the existing statutory and administrative procedures followed by the California Department of Tax and Fee Administration in administering and collecting the California State Sales and Use Taxes.
D. To adopt a retail transactions and use tax ordinance that can be administered in a manner that will be, to the greatest degree possible, consistent with the provisions of Part 1.6 of Division 2 of the Revenue and Taxation Code, minimize the cost of collecting the transactions and use taxes, and at the same time, minimize the burden of record keeping upon persons subject to taxation under the provisions of this ordinance.

3.70.040 Contract with State.

Prior to the operative date, the City shall contract with the California Department of Tax and Fee Administration to perform all functions incident to this chapter; provided, that if the City shall not have contracted with the California Department of Tax and Fee Administration prior to the operative date, it shall nevertheless so contract and in such a case the operative date shall be the first day of the first calendar quarter following the execution of such a contract.

3.70.050 Imposition of 1% Transactions Tax.

For the privilege of selling tangible personal property at retail, a tax is hereby imposed upon all retailers in the incorporated territory of the City at the rate of 1% of the gross receipts of any retailer from the sale of all tangible personal property sold at retail in said territory on and after the operative date of this Chapter.

3.70.060 Place of Sale.

For the purposes of this chapter, all retail sales are consummated at the place of business of the retailer unless the tangible personal property sold is delivered by the retailer or his agent to an out-of-state destination or to a common carrier for delivery to an out-of-state destination. The gross receipts from such sales shall include delivery charges, when such charges are subject to the state sales and use tax, regardless of the place to which delivery is made. In the event a retailer has no permanent place of business in the State or has more than one place of business, the place or places at which the retail sales are consummated shall be determined under rules and regulations to be prescribed and adopted by the California Department of Tax and Fee Administration.

3.70.070 Imposition of 1% Use Tax.

An excise tax is hereby imposed on the storage, use or other consumption in the City of tangible personal property purchased from any retailer on and after the operative date of this chapter for storage, use or other consumption in said territory at the rate of 1% of the sales price of the property. The sales price shall include delivery charges when such charges are subject to state sales or use tax regardless of the place to which delivery is made.

3.70.080 Adoption of Provisions of State Law.

Except as otherwise provided in this chapter and except insofar as they are inconsistent with the provisions of Part 1.6 of Division 2 of the Revenue and Taxation Code, all of the provisions of Part 1 (commencing with Section 6001) of Division 2 of the Revenue and Taxation Code are hereby adopted and made a part of this chapter as though fully set forth herein.

3.70.090 Limitations on Adoption of State Law and Collection of Use Taxes.

In adopting the provisions of Part 1 of Division 2 of the Revenue and Taxation Code:

A. Wherever the State of California is named or referred to as the taxing agency, the name of this City shall be substituted therefor. However, the substitution shall not be made when:

1. The word "State" is used as a part of the title of the State Controller, State Treasurer, State Treasury, or the Constitution of the State of California.
2. The result of that substitution would require action to be taken by or against this City or any agency, officer, or employee thereof rather than by or against the California Department of Tax and Fee Administration, in performing the functions incident to the administration or operation of this Chapter.
3. In those sections, including, but not necessarily limited to sections referring to the exterior boundaries of the State of California, where the result of the substitution would be to:
    a. Provide an exemption from this tax with respect to certain sales, storage, use or other consumption of tangible personal property which would not otherwise be exempt from this tax while such sales, storage, use or other consumption remain subject to tax by the State under the

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provisions of Part 1 of Division 2 of the Revenue and Taxation Code, or;

b. Impose this tax with respect to certain sales, storage, use or other consumption of tangible personal property which would not be subject to tax by the state under the said provision of that code.

4. In Sections 6701, 6702 (except in the last sentence thereof), 6711, 6715, 6737, 6797 or 6828 of the Revenue and Taxation Code.

B. The word "City" shall be substituted for the word "State" in the phrase "retailer engaged in business in this State" in Section 6203 and in the definition of that phrase in Section 6203.

1. "A retailer engaged in business in the District" shall also include any retailer that, in the preceding calendar year or the current calendar year, has total combined sales of tangible personal property in this state or for delivery in the State by the retailer and all persons related to the retailer that exceeds five hundred thousand dollars ($500,000). For purposes of this section, a person is related to another person if both persons are related to each other pursuant to Section 267(b) of Title 26 of the United States Code and the regulations thereunder

3.70.100 Permit Not Required.

If a seller's permit has been issued to a retailer under Section 6067 of the Revenue and Taxation Code, an additional transactor's permit shall not be required by this chapter.

3.70.110 Exemptions and Exclusions.

A. There shall be excluded from the measure of the transactions tax and the use tax the amount of any sales tax or use tax imposed by the State of California or by any city, city and county, or county pursuant to the Bradley-Burns Uniform Local Sales and Use Tax Law or the amount of any state-administered transactions or use tax.

B. There are exempted from the computation of the amount of transactions tax the gross receipts from:

1. Sales of tangible personal property, other than fuel or petroleum products, to operators of aircraft to be used or consumed principally outside the county in which the sale is made and directly and exclusively in the use of such aircraft as common carriers of persons or property under the authority of the laws of this State, the United States, or any foreign government.

2. Sales of property to be used outside the City which is shipped to a point outside the City, pursuant to the contract of sale, by delivery to such point by the retailer or his agent, or by delivery by the retailer to a carrier for shipment to a consignee at such point. For the purposes of this paragraph, delivery to a point outside the City shall be satisfied:

a. With respect to vehicles (other than commercial vehicles) subject to registration pursuant to Chapter 1 (commencing with Section 4000) of Division 3 of the Vehicle Code, aircraft licensed in compliance with Section 21411 of the Public Utilities Code, and undocumented vessels registered under Division 3.5 (commencing with Section 9840) of the Vehicle Code by registration to an out-of-City address and by a declaration under penalty of perjury, signed by the buyer, stating that such address is, in fact, his or her principal place of residence; and

b. With respect to commercial vehicles, by registration to a place of business out-of-City and declaration under penalty of perjury, signed by the buyer, that the vehicle will be operated from that address.

3. The sale of tangible personal property if the seller is obligated to furnish the property for a fixed price pursuant to a contract entered into prior to the operative date of this chapter.

4. A lease of tangible personal property which is a continuing sale of such property, for any period of time for which the lessor is obligated to lease the property for an amount fixed by the lease prior to the operative date of this chapter.

5. For the purposes of subparagraphs (3) and (4) of this section, the sale or lease of tangible personal property shall be deemed not to be obligated pursuant to a contract or lease for any period of time for which any party to the contract or lease has the unconditional right to terminate the contract or lease upon notice, whether or not such right is exercised.

C. There are exempted from the use tax imposed by this chapter, the storage, use or other consumption in this City of tangible personal property:

1. The gross receipts from the sale of which have been subject to a transactions tax under any state-administered transactions and use tax ordinance.

2. Other than fuel or petroleum products purchased by operators of aircraft and used or consumed by such operators directly and exclusively in the use of such aircraft as common carriers of persons or property for hire or compensation under a certificate of public convenience and necessity issued pursuant to the laws of this State, the United States, or any foreign government. This exemption is in addition to the exemptions provided in Sections 6366 and 6366.1 of the Revenue and Taxation Code of the State of

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California.

3. If the purchaser is obligated to purchase the property for a fixed price pursuant to a contract entered into prior to the operative date of this chapter.

4. If the possession of, or the exercise of any right or power over, the tangible personal property arises under a lease which is a continuing purchase of such property for any period of time for which the lessee is obligated to lease the property for an amount fixed by a lease prior to the operative date of this chapter.

5. For the purposes of subparagraphs (3) and (4) of this section, storage, use, or other consumption, or possession of, or exercise of any right or power over, tangible personal property shall be deemed not to be obligated pursuant to a contract or lease for any period of time for which any party to the contract or lease has the unconditional right to terminate the contract or lease upon notice, whether or not such right is exercised.

6. Except as provided in subparagraph (7), a retailer engaged in business in the City shall not be required to collect use tax from the purchaser of tangible personal property, unless the retailer ships or delivers the property into the City or participates within the City in making the sale of the property, including, but not limited to, soliciting or receiving the order, either directly or indirectly, at a place of business of the retailer in the City or through any representative, agent, canvasser, solicitor, subsidiary, or person in the City under the authority of the retailer.

7. "A retailer engaged in business in the City" shall also include any retailer of any of the following: vehicles subject to registration pursuant to Chapter 1 (commencing with Section 4000) of Division 3 of the Vehicle Code, aircraft licensed in compliance with Section 21411 of the Public Utilities Code, or undocumented vessels registered under Division 3.5 (commencing with Section 9840) of the Vehicle Code. That retailer shall be required to collect use tax from any purchaser who registers or licenses the vehicle, vessel, or aircraft at an address in the City.

D. Any person subject to use tax under this chapter may credit against that tax any transactions tax or reimbursement for transactions tax paid to a district imposing, or retailer liable for a transactions tax pursuant to Part 1.6 of Division 2 of the Revenue and Taxation Code with respect to the sale to the person of the property the storage, use or other consumption of which is subject to the use tax.

3.70.120 Amendments.

All amendments subsequent to the effective date of this chapter to Part 1 of Division 2 of the Revenue and Taxation Code relating to sales and use taxes and which are not inconsistent with Part 1.6 and Part 1.7 of Division 2 of the Revenue and Taxation Code, and all amendments to Part 1.6 and Part 1.7 of Division 2 of the Revenue and Taxation Code, shall automatically become a part of this chapter, provided however, that no such amendment shall operate so as to affect the rate of tax imposed by this chapter.

3.70.130 Enjoining Collection Forbidden.

No injunction or writ of mandate or other legal or equitable process shall issue in any suit, action or proceeding in any court against the State or the City, or against any officer of the State or the City, to prevent or enjoin the collection under this chapter, or Part 1.6 of Division 2 of the Revenue and Taxation Code, of any tax or any amount of tax required to be collected.

3.70.140 Use of Tax Proceeds.

The proceeds of the tax imposed by this chapter shall be deposited in the general fund of the city and may be used for any lawful municipal purpose. The tax does not meet the criteria established by Section 1(d) of Article XIIIC of the California Constitution for special taxes, and is a general tax imposed for general government purposes.

3.70.150 Annual Audit.

The proceeds of this tax shall be subject to annual audit by an independent certified public accountant and the results of the audit shall be reported to the city council in a document posted on the city's website and available for public inspection. Such audit may be done at the same time (and as a part of) the city's annual audit, and such reporting may be done as a part of the city's consolidated annual financial report.

3.70.160 Severability.

If any provision of this chapter or the application thereof to any person or circumstance is held invalid, the remainder of the chapter and the application of such provision to other persons or circumstances shall not be affected thereby.

3.70.170 Termination Date.

The tax imposed by this chapter shall not expire unless terminated by lawful vote of the electorate or as required or authorized by law.

SECTION 3. This ordinance relates to the levying and collecting of the City transactions and use taxes and shall take effect immediately. This Ordinance shall take effect only if it is both (i) approved by a two-thirds vote of all members of the City Council and (ii) approved by a majority vote (50%+1 vote) of the qualified voters of the city voting

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in an election on the issue. The tax imposed by this ordinance shall take effect as set forth in Section 3.70.020 of the Municipal Code as set forth in Section 2 of this Ordinance.

SECTION 4. This Ordinance is exempt from CEQA pursuant to CEQA Guidelines §15378(b)(4) which provides that the creation of government funding mechanisms or other government fiscal activities that do not involve any commitment to a specific project that may result in a potentially significant physical impact on the environment are not projects subject to the requirements of CEQA.

SECTION 5. Any provision of the Adelanto Municipal Code or appendices thereto inconsistent with the provisions of this Ordinance, to the extent of such inconsistencies and no further, is hereby repealed or modified to the extent necessary to implement the provisions of this Ordinance.

SECTION 6. If any section, subsection, subdivision, paragraph, sentence, clause or phrase of this Ordinance, or any part thereof is for any reason held to be invalid or unconstitutional by a decision of any court of competent jurisdiction, such decision shall not affect the validity of the remaining portions of this Ordinance or any part thereof. The City Council hereby declares that it would have passed each section, subsection, subdivision, paragraph, sentence, clause or phrase thereof, irrespective of the fact that any one or more section, subsection, subdivision, paragraph, sentence, clause or phrase would be subsequently declared invalid or unconstitutional.

SECTION 7. The City Clerk shall certify the introduction of this ordinance and submit the measure to the voters at the November 3, 2026 General Municipal Election. Upon approval by a majority of the voters voting on the measure and certification of the election results by the City Council, this ordinance shall be deemed adopted and shall become operative as provided in Section 3.70.020.

PASSED, APPROVED AND ADOPTED by the City Council of the City of Adelanto at the regular meeting of this 8th day of July, 2026.

_____
s/ Gabriel Reyes, Mayor

ATTEST:

_____
s/ Brenda Lopez, City Clerk

APPROVED AS TO FORM:

_____
s/ Todd Litfin, City Attorney

STATE OF CALIFORNIA)
COUNTY OF SAN BERNARDINO) SS:
CITY OF ADELANTO)

I, Brenda Lopez, City Clerk of the City of Adelanto, hereby certify that the foregoing Ordinance No. 667 was passed and adopted by the City Council of the City of Adelanto, signed by the Mayor and attested by the City Clerk at a regular meeting of said Council held on the 8th day of July 2026 and that said Ordinance was adopted by the following vote, to-wit:

AYES: Council Members Meza, Uptergrove, Mayor Pro Tem Ramos and Mayor Reyes

NOES: Council Member Evans

ABSTAIN: None

ABSENT: None

_____
s/ Brenda Lopez, City Clerk